

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

entered into by and between

Company Name: _____

Registration no. _____

Herein referred in as “**Shortened Name**” _____

and

SAU TECHNOLOGY AND DISASTER RECOVERY (PROPRIETARY) LIMITED

Registration no. 2023/0508

Herein referred in as “**Sautech**”

1. DEFINITIONS

In this agreement, unless inconsistent with or otherwise indicated by the context:

- 1.1 **"Associated Parties"** in relation to the recipient shall mean all shareholders, directors, members, subsidiaries, partners, trustees, employees, agents and/or representatives, sub-contractors and independent contractors of the recipient;
- 1.2 **"Sautech"** means Sau Technology Hosting and Disaster Recovery (Proprietary) Limited, with Registration Number 2023/0508 a company duly registered according to the Company Laws of the Republic of Namibia herein represented by Mr. Lukas Janse van Rensburg, he being duly authorized hereto and having its registered office at Regus, Maerua Mall, 3rd Floor, Windhoek, Namibia.
- 1.3 **"Shortened Name"** **Company Shortened Name** _____
- 1.4 **"Confidential Information"** - shall include but not be limited in interpretation to all secret knowledge, technical information and specifications, designs, electronic artwork, techniques, source codes, instruction manuals, blue prints, samples, devices, demonstrations, know-how, information concerning materials, demonstrations, marketing and business information generally, technical, commercial, scientific information, software, hardware, and any other materials of whatsoever nature and whatsoever description and which the divulging party has an interest in being kept confidential;
- 1.5 **"Divulging Party"** means the party that divulges and/or discloses the Confidential Information,
- 1.6 **"Duration"** this agreement shall endure twelve (12) months from the effective date;
- 1.7 **"Effective Date"** shall mean the date of signature of this agreement by the last Party hereto;
- 1.8 **"Recipient"** means the party that receives the Confidential Information;
- 1.9 **"Consultants"** means Sautech Staff and/or Contractors

2. INTERPRETATION

- 2.1 The headings of the paragraphs of this agreement are inserted for reference purposes only and shall not affect the interpretation of any of the provisions to which they relate.
- 2.2 Words importing the singular shall include the plural and *vice versa* and words importing the masculine gender shall include the female and words importing persons shall include corporate and non-corporate entities.
- 2.3 If any provision and/or definition and/or interpretation clause is a substantive provision conferring rights or imposing obligations on any party notwithstanding that it is only in a definition or interpretation clause, effect shall be given to it as if it were a substantive provision in the body of the agreement.

- 2.4 The terms and conditions of this agreement shall be binding on the executors, administrators, trustees, liquidators, judicial managers, receivers, assigns, and all successors in title of the respective parties hereto as fully and effectually as if they had entered into this agreement in the first place.
- 2.5 The parties wish to protect their confidential information and trade secrets and accordingly require the other party to undertake that it will protect and not disclose any of this information to any third parties.
- 2.6 This agreement shall remain in force regardless of whether or not a contractual relationship in respect of the confidential information comes into existence.
- 2.7 The divulging party has agreed to disclose certain of its confidential information to the recipient subject to the recipient agreeing to the terms and conditions contained in this agreement.

3. **TITLE TO THE CONFIDENTIAL INFORMATION**

The recipient acknowledges that all rights, title and interest in and to the confidential information vests in the divulging party and that it has no claim of any nature whatsoever in and to the confidential information.

4. **NON DISCLOSURE OF CONFIDENTIAL INFORMATION**

- 4.1 The recipient undertakes to maintain the confidentiality of any confidential information to which the recipient becomes acquainted with from the divulging party, whether before or after the effective date of this agreement and whether such information be disclosed orally, visually or in writing or in any other manner whatsoever.
- 4.2 The recipient furthermore undertakes not to divulge or permit to be divulged any aspect of such confidential information otherwise than is allowed for under the terms of this agreement.
- 4.3 The recipient shall not make use of any of the confidential information in the development, research, manufacture, marketing and/or sale of any goods without the prior written consent of the divulging party.
- 4.4 The recipient shall not use or disclose or attempt to use or disclose confidential information for any purpose other than performing its contractual obligations to the divulging party.
- 4.5 The recipient shall not use or attempt to use the confidential information in any manner, which will cause or be likely to cause injury or loss to the divulging party.
- 4.6 Notwithstanding anything contained herein, the recipient shall be entitled to disclose the confidential information to such of its associated parties as may strictly be necessary for the purpose for which the confidential information was disclosed to it in terms of this agreement, provided that the recipient shall take whatever steps that are necessary to ensure that such associated parties agree to abide by the terms of this agreement and each conclude a separate confidentiality and non-disclosure agreement mutatis mutandis on the terms and conditions set out herein in favor of the divulging party in order to prevent the unauthorized disclosure of the confidential information to third parties.

- 4.7 The recipient agrees not to utilize, exploit or in any other manner whatsoever use the confidential information disclosed pursuant to the provisions of this agreement for any purpose whatsoever, without the prior written consent of the divulging party
- 4.8 The recipient acknowledges that the unauthorized disclosure of the confidential information to a third party may cause irreparable loss, harm and damage to the divulging party. Accordingly, the recipient indemnifies and holds the divulging party harmless against any loss, action, expense, claim, harm or damage of whatsoever nature suffered by or sustained by the divulging party pursuant to the breach by the recipient of the provisions of this agreement.
- 4.9 All documentation furnished to the recipient by the divulging party pursuant to this undertaking, will remain the property of the divulging party and upon request by the divulging party will immediately be returned to the divulging party.
- 4.10 Any material of a confidential nature which comes into the possession of the recipient or one of its agents or employees, or which is generated by the recipient or one of its agents or employees after the effective date, shall be deemed to form part of the confidential information of the divulging party and shall be deemed to be the property of the divulging party and shall not be copied to reproduce, published or circulated by the recipient and shall be surrendered to the divulging party upon demand.
- 4.11 The recipient furthermore agrees that it shall not, whether directly or indirectly, modify, vary, enhance, copy, sell, license, lease, sub-license or in any other manner deal with the product or any part of the confidential information.

5 EXCEPTION

- 5.1 The above undertakings by the recipient relating to the confidentiality shall not apply to information which:
- 5.1.1 Is in fact lawfully in the public domain at the effective date; or
 - 5.1.2 The recipient is compelled to disclose in terms of a Court order by a Court with a competent jurisdiction.
- 5.2 The onus of proving the facts necessary to sustain any one of the exceptions listed above rests with the recipient.

6 RESTRAINT

- 6.1 The recipient acknowledges that the confidential information has considerable commercial value to the divulging party and the recipient undertakes in favor of the divulging party, its successors in title and assigns that in order to protect the proprietary interest of the divulging party the recipient:
- 6.2 Will not either solely or jointly, as employee manager or agent for any person whilst any portion of the confidential information is still confidential, directly or indirectly, carry on or assist financially or otherwise be

engaged or concerned or interested in or be a director of or shareholder or member in, or be employed by or act as a consultant or advisor to any personal business which, anywhere in the world is involved or intends to become involved in the development of the same or similar technology.

6.3 The restraints undertaken by the recipient in this agreement, shall be deemed:

6.3.1 To be in respect of each part thereof entire, separate, separable and separately enforceable in the widest sense from the other parts thereof. An undertaking of restraint shall be deemed to be a separate undertaking or restraint notwithstanding the fact that it appears in the same clause, sub-clause or sentence or any other undertaking which is imposed by the introduction of words or phrase conjunctively with its disjunctively form or alternatively other words or phrases

6.3.2 Or to have imposed separately in respect of each part of the world and the fact that a restraint may not be valid or enforceable in respect of any one part thereof will not affect its validity or enforceability in so far as the other parts thereof are concerned.

6.4 The recipient hereby acknowledges that the said restraints are fair and reasonable and go no further than is reasonably necessary to protect the proprietary rights of the divulging party.

6.5 In the event of the recipient disposing of its business or any portion thereof including tangible or intangible assets of the recipient, it shall ensure that the beneficiary to such disposition is bound to the terms and conditions as contained herein.

7. RISK

7.1 Neither the divulging party nor any other employees, representatives or agents made any representations or gave any warranty as to the accuracy or completeness of the confidential information divulged to the recipient and they shall accordingly not be liable to the recipient with respect thereto.

7.2 The recipient acknowledges that notwithstanding the fact that the information to be divulged may be such that it will induce the recipient to act on such information in any manner whatsoever, the recipient acknowledges that the divulging party shall in no way be responsible for such actions and that the use of the information is at the recipient's risk.

8. REPRESENTATIONS AND WARRANTIES

Each party represents and warrants that it has the authority necessary to enter into this agreement and to do all things necessary to procure the fulfilment of its obligations in terms of this agreement.

9. **GENERAL TERMS**

- 9.1 This agreement constitutes the whole of the agreement between the parties and no amendment, alteration, addition, variation or consensual cancellation of this agreement shall be of any force or effect unless it is reduced to writing and signed by both parties.
- 9.2 No waiver of any of the terms and conditions of this agreement will be binding for any purpose unless expressed in writing and signed by both parties and any such waiver will be effective only in that specific instant and for that specific purpose given.
- 9.3 No failure or delay on the part of the divulging party in exercising any rights, powers, privileges or obligations will operate as a waiver by the divulging party of any of its rights, powers or privileges in terms of this agreement.

10. **JURISDICTION**

South African Law shall govern this undertaking and the recipient hereby irrevocably agrees to the jurisdiction of the High Courts of South Africa in respect of any dispute flowing from this undertaking.

11. **SEVERABILITY**

In the event that any of the provisions of this undertaking are found to be invalid, unlawful, or unenforceable such terms shall be severable from the remaining terms, which shall continue to be valid and enforceable.

12. **COSTS**

In the event of the divulging party having to institute legal proceedings against the recipient for any cause whatsoever arising from a breach of this agreement, the recipient agrees to be liable to the divulging party for legal costs on an attorney and own client scale in the event of costs being awarded in favor of the divulging party.

13. **SIGNATURES**

SIGNED AT _____ on this the _____ day of _____ 2023.

Company Representative (print name)

Signature

Occupation
(duly authorized)

Company (print name)

AS WITNESS 1 (Signature)

AS WITNESS 2 (Signature)

SIGNED AT _____ on this the _____ day of _____ 2023.

Mr. Lukas Janse van Rensburg
Managing Director
Sautech (Pty) Ltd

Signature

AS WITNESS 1 (Signature)

AS WITNESS 2 (Signature)